

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

HENRY SCHIFF,

SUMMONS

Plaintiff, Index No.:

-against-

The Basis of Venue is:
Location of IncidentTHE CITY OF NEW YORK, NYPD OFFICER
NICHOLAS CONTARDO, Shield No. 8517, and NYPD
POLICE OFFICERS JOHN/JANE DOE NUMBERS 1-10,Plaintiff designates New York
County as the place of trial.

Defendants.

----- X

To the above named Defendants:

You are hereby summoned to answer the Verified Complaint in this action, and to serve a copy of your Verified Answer to the Verified Complaint, or, if the Verified Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 20, 2021

Yours, etc.



CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES PLLC
Attorney for Plaintiff
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
NYPD OFFICER NICHOLAS CONTARDO, 2800 West 6th Street, Brooklyn NY 11224

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

HENRY SCHIFF,

INDEX NO.:

Plaintiff,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD OFFICER
NICHOLAS CONTARDO, Shield No. 8517, and NYPD
POLICE OFFICERS JOHN/JANE DOE NUMBERS 1-10,

JURY TRIAL DEMANDED

Defendants.

----- X

Plaintiff HENRY SCHIFF, by his attorneys, Caitlin Robin & Associates, PLLC, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On May 4, 2021, at approximately 10:45 p.m., plaintiff Henry Schiff, while lawfully at the south east corner of Pike Street and Cherry Street, County of New York, New York, was subject to an unlawful stop, question, frisk, search, false arrest, and false imprisonment by the defendant New York City police officers. In addition, Plaintiff suffered mental and emotional injury. Plaintiff was unlawfully imprisoned the Police Precinct and at Central Bookings for approximately 22 hours before he was released. Plaintiff was deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, and his State and Federal constitutional and common law rights when the individual defendants unlawfully stopped, questioned, frisked, searched, confined, falsely arrested, falsely imprisoned, in violation of the Fourth, Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff Henry Schiff is a resident of the state of New York.

3. NYPD OFFICER NICHOLAS CONTARDO, Shield No. 8517, was at all times relevant herein an officer, employee, and agent of the New York City Police Department.

4. NYPD OFFICER NICHOLAS CONTARDO, Shield No. 8517, is being sued in his individual and official capacities.

5. NYPD OFFICER NICHOLAS CONTARDO, Shield No. 8517, was at all times relevant herein assigned to the Transit Division Vandal Unit.

6. NYPD POLICE OFFICERS JOHN AND JANE DOE NUMBERS 1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

7. NYPD POLICE OFFICERS JOHN AND JANE DOE NUMBERS 1-10 are being sued in their individual and official capacities.

8. NYPD POLICE OFFICERS JOHN AND JANE DOE NUMBERS 1-10 were at all times relevant herein, assigned to the 5th Precinct or were working at Central Booking in New York County.

9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

10. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

11. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a timely Notice of Claim against the CITY OF NEW YORK in compliance with the Municipal Law Section 50 and in accordance with New York State law.

12. In accordance with New York State law and General Municipal Law Section 50, plaintiff testified at a hearing held pursuant to General Municipal Law Section 50-H on September 24, 2021.

13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claims.

14. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

15. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

16. On May 4, 2021, at approximately 10:00 P.M., Plaintiff was lawfully at the southeast corner of Pike Street and Cherry Street, County of New York, New York, when defendant police officers unlawfully stopped, questioned, searched, and falsely arrested Plaintiff without probable cause or legal justification.

17. On May 4, 2021, Plaintiff was riding his bike near the LES Coleman Skate Park at under the Manhattan Bridge when he stopped to speak with an acquaintance.

18. After dismounting his bicycle, and before he spoke to anyone, Plaintiff was approached by at least two police officers in uniform.

19. Plaintiff was immediately searched and handcuffed unlawfully and without any probable case.

20. When Plaintiff asked Defendant Officers why he was being arrested, they responded "you know what you did" and gave him no further information.

21. At no point did Plaintiff make graffiti.

22. At no point did Plaintiff possess any graffiti instruments.

23. Plaintiff and his bicycle were taken to the 5th Police Precinct in Chinatown.

24. At the 5th Police Precinct, Plaintiff was searched again, as well as fingerprinted and photographed.

25. Plaintiff spent approximately 5 hours at the precinct before being taken to New York Central Bookings.

26. At Central Bookings, Plaintiff was searched, fingerprinted, photographed and retinal scanned.

27. Plaintiff was placed in a holding cell with 15 people, none of whom were wearing masks, where he remained for approximately 24 hours.

28. Eventually, Plaintiff was released on his own recognizance and given a date to return to court.

29. Plaintiff was charged via criminal complaint with one count of Making Graffiti, in violation of P.L. § 145.60(2), a Class A Misdemeanor, and one count of Possession of Graffiti Instruments, in violation of P.L. § 145.65, a Class B Misdemeanor.

30. These charges originated in a complaint sworn and signed by Defendant Officer Contardo on May 5, 2021 at 4:50PM.

31. On information and belief, Officer Contardo communicated these false allegations to the New York County's Early Case Assessment Bureau on May 5, 2021.

32. On May 20, the assigned Assistant District Attorney contacted Defendant Officer Contardo who stated in substance that Plaintiff did not make graffiti or possess a graffiti instrument.

33. As a result of the May 20 phone call with Defendant Officer Contardo, the New York County District Attorney's Office moved to dismiss the case against Plaintiff.

34. On June 2, 2021, the criminal case against Plaintiff was dismissed and sealed by motion of the People.

35. As a result of this incident, Plaintiff has received therapy with a licensed psychiatrist.

36. At no time relevant herein did Plaintiff commit a crime or violate the law in any way, nor did the police officers have an objective reason to accuse Plaintiff of committing a crime or violating the law in any way.

37. At no point did Defendant Officers recover any drugs, weapons, graffiti instruments, or other illegal contraband from Plaintiff or from a location that was in Plaintiff's possession, custody, or control.

38. Nevertheless, Plaintiff was unlawfully arrested and handcuffed by defendant officers without legal justification or probable cause, unlawfully fingerprinted, photographed and searched, and unlawfully detained.

39. Some of the police officer defendants observed the violation of Plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent their fellow officers from unjustifiably searching, seizing, using excessive force, falsely arresting and imprisoning, humiliating, and denying Plaintiff the right to due process and a fair trial.

40. The unlawful search, seizure, false arrest and imprisonment, and denial of Plaintiff's right to a fair trial by the individually named defendants caused Plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION
Unlawful Stop, Question, and Search

41. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

42. The illegal approach, pursuit, stop, questioning, and search employed by defendants herein terminated Plaintiff's freedom of movement through means intentionally applied.

43. The conduct of defendants in stopping, frisking, and searching Plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

44. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

45. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

46. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SECOND CAUSE OF ACTION
Violation of Fourth and Fourteenth Amendment Rights:
Unlawful Seizure and Deprivation of Liberty

47. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

48. The individually named police officer defendants, while acting in concert and within the scope of their authority, caused Plaintiff to be seized, unlawfully searched, falsely arrested, and falsely imprisoned, and maliciously prosecuted without reasonable suspicion and/or probable cause, in violation of Plaintiff's right to be free of an unreasonable seizure under the Fourth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

49. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

THIRD CAUSE OF ACTION**False Imprisonment**

50. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

51. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

52. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York and the United States Constitution.

53. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

54. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

55. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to loss of liberty, emotional and psychological injuries.

FOURTH CAUSE OF ACTION**Negligent Infliction of Emotional Distress**

56. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

57. By the actions described herein, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

65. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed Plaintiff by the laws and Constitution of the State of New York.

66. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

67. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

68. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

69. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

70. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein

71. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

72. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Failure to Intervene

73. Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

74. The defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's Constitutional Rights had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

75. Defendants failed to intervene to prevent the unlawful conduct described herein.

76. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to unlawful search and other physical constraints.

77. As a direct and proximate result of such acts, defendants deprived Plaintiff of his rights under the laws of the State of New York.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

80. As a result of the aforementioned conduct of defendants, Plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Individual Defendant Officer's Violation of Plaintiff's AC 8-8802 Rights

81. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

82. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

83. The acts of Defendant Officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

84. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing his detention for approximately 24 hours in total.

85. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

EIGHTH CAUSE OF ACTION

Individual Defendant Officer's Failure to Intervene in Violation of Plaintiff's AC 8-8802 Rights

86. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

87. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

88. Defendant Officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and

to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

89. The Defendants that did not physically touch Plaintiff, but were present when other officers violated Plaintiff's AC 8-8802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

90. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

91. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

NINTH CAUSE OF ACTION

City-Employer's Liability for Defendant Officer's Violation of Plaintiff's AC 8-8802 Rights

92. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

93. Defendant Officers are "covered individuals" as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 8801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

94. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

95. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

96. The acts of Defendant Officers caused Plaintiff to be deprived of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

97. The Defendant Officers, while in uniform, unlawfully seized, frisked, and searched the Plaintiff, before detaining plaintiff and further causing his detention for approximately 24 hours.

98. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

TENTH CAUSE OF ACTION

**City-Employer's Liability for Defendant Officer's Failure to
Intervene in Violation of Plaintiff's AC 8802 Rights**

99. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

100. Defendant Officers are "covered individuals" as defined in 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 - 8801 in that they are employees of the Police Department or persons appointed by the Police Commissioner as a Special Patrolmen.

101. The City of New York, as the employer of the covered individual Defendant Officers, is liable to the Plaintiff for the wrongdoing of the covered individual Defendant Officers.

102. The acts of Defendant Officers constituted conduct under color of any law, ordinance, rule, regulation, custom or usage.

103. Defendant Officers had a duty to protect Plaintiff from violations of his rights under 2021 N.Y.C. Local Law No. 48, N.Y.C. Admin. Code §§ 8 – 8802, to wit: to be secure in his person, house, papers, and effects against unreasonable searches and seizures, and to be secure against the use of excessive force regardless of whether such force is used in connection with a search or seizure.

104. The Defendants that did not physically touch Plaintiff but were present when other officers violated Plaintiff's AC 8-8802 right against unreasonable search and seizure and excessive force had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

105. Defendants failed to intervene to prevent the unlawful conduct described herein, thereby failed in their duty to intervene to protect Plaintiff from violation of his rights.

106. By reason of the acts and omissions by Defendants described above, Plaintiff has endured physical and emotional injuries and was otherwise damaged and injured.

ELEVENTH CAUSE OF ACTION
Violation of Fourth And Fourteenth Amendment Rights:
Denial of Right to Fair Trial/Due Process

107. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

108. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

109. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

110. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Kings County District Attorney's Office.

111. In withholding/creating false evidence against Plaintiff, and in providing/withholding information with respect thereto, Defendants violated Plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

112. As a result of the foregoing, Plaintiff sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, and deprivation of his constitutional rights.

113. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

114. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

115. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: economic, emotional and psychological injuries.

TWELFTH CAUSE OF ACTION **Malicious Prosecution**

116. The Plaintiff repeats and realleges the foregoing paragraphs as if the same were fully set forth at length herein.

117. The acts and conduct of the Defendants constitute malicious prosecution under the United States Constitution.

118. Defendants commenced and continued a criminal proceeding against Plaintiff.

119. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which they were prosecuted.

120. The prosecution and criminal proceedings terminated in Plaintiff's favor on the aforementioned dates.

121. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate Plaintiff's Fourth Amendment rights.

122. As a direct and proximate result of such acts, Defendants deprived Plaintiff of his rights under the laws of the United States Constitution.

123. The City, as the employer of the officer Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

124. As a result of the aforementioned conduct of Defendants, Plaintiff sustained injuries including, but not limited to: emotional and psychological injuries.

JURY DEMAND

125. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff HENRY SCHIFF demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the Plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
October 20, 2021

By: 
CAITLIN ROBIN, ESQ.
CAITLIN ROBIN AND ASSOCIATES PLLC
Attorney for Plaintiff
30 Broad Street Suite 702
New York, New York 10004
(646)-524-6026

TO: THE CITY OF NEW YORK, Corporation Counsel, 100 Church Street, NY, NY 10007
NYPD OFFICER NICHOLAS CONTARDO, 2800 West 6th Street, Brooklyn NY 11224

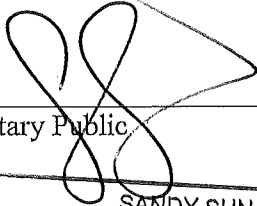
VERIFICATION

I, Henry Schiff, being duly sworn, deposes and says: I am the plaintiff in the above-entitled action. I have read the foregoing complaint and know the contents thereof. The same are true to my knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters I believe them to be true.



Henry Schiff

Sworn before me, this 20 day of October, 2021



Notary Public

